Week 3: Treaties

LAWS2000/8015 Public International Law

- *Students are expected to prepare tentative answers to the below hypotheticals in advance of the tutorial.*
- *Students will work in groups (30 minutes in total, 15 minutes for each hypothetical) discussing their answers & exchanging ideas.*
- *Each group will need to craft a uniform team response addressing all questions under each hypothetical. All team members should be given the opportunity to contribute.*

Hypothetical 1

FACTS: During his recent visit to Bali, Indonesia, the Australian Minister of Agriculture signed an agreement with his Indonesian counterpart on transboundary fisheries management. The new so-called 'Fisheries Cooperation Accord' aims to establish common regulatory measures between the two countries to manage transboundary fish stocks in the Timor Sea, which is a shared fishing ground. Some of the measures include directing their respective fishing industries to reduce catch quotas during certain periods of the year across the common boundary. However, local fisheries industries in Australia are protesting the agreement, arguing that it is not legally binding, and that they should be able to continue their operations without reducing catches at all.

TASK: You have been instructed to provide advice on the extent to which the agreement is legally binding and any legal conditions that may apply in that regard. Can Australian fisheries organisations and industries continue their operations as normal?

Consider:

A. Is it a treaty?
B. Can the Australian Minister of Agriculture sign a treaty? Who can bind Australia in its international relationships? Under what circumstances?
C. Is ratification required?
D. What is the typical treaty making process in Australia?

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Hypothetical 2

Facts: Novaria has recently signed and ratified the Chemical Weapons Convention (concluded 13 January 1993, entered into force 29 April 1997). The Convention prohibits the development, production, stockpiling, and use of chemical weapons. However, upon ratification, Novaria has expressed some security concerns about some of the treaty's provisions, specifically ARTICLE IV paragraph 5 which provides:

> << *Each State Party shall provide access to any chemical weapons destruction facilities and their storage areas, that it owns or possesses, or that are located in any place under its jurisdiction or control, for the purpose of systematic verification through on-site inspection and monitoring with on-site instruments.* >>

Novaria proceeds to declare that it will adhere to the treaty except with respect to ARTICLE IV paragraph 5 of the Convention. Armadonia, another signatory to the treaty, has taken issue with Novaria's declaration. Armadonia argues that Novaria's statement weakens the treaty's effectiveness and establishes a hazardous precedent for other nations to follow.

***Task:* Based on the given facts, what would be the legal situation/relationship between Armadonia and Novaria? Discuss all possible scenarios with specific reference to the Vienna Convention on the Law of Treaties and scholarly literature.**

Consider:

A. Is Novaria's declaration a reservation? Why?
B. Is this a permitted reservation?
C. What would be the legal relationship between Novaria & Armadonia? What possible scenarios apply to non-permitted reservations***?***